

## 26STLC02305 26STLC02305

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-28

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Case Number: 26STLC02305 Hearing Date: July 28, 2026 Dept: 26

### TENTATIVE RULING:

Specially

Appearing Defendant Sunset West Legal Group, PC's Motion to Quash Service of Summons and Complaint is granted.

Defendant

Sunset West Legal Group, PC's Special Motion to Strike, scheduled for 09/01/2026, is placed off calendar.

Order to Show

Cause Re: Failure to File Proof of Service of Summons and Complaint is set for 08/28/2026 at 9:30 am in Department 26 in the Spring Street Courthouse.

Analysis:

Plaintiff Barbara Bartnof ("Plaintiff"), in propria persona, filed the instant action for fraud, intentional misrepresentation, and abuse of process against Sunset West Legal Group, PC ("Defendant SWLG") and others on April 6, 2026. No proof of service has been filed. On June 4, 2026, Defendant SWLG filed and served the instant Motion to Quash Service of Summons and Complaint. Defendant SWLG also concurrently filed and served a Special Motion to Strike.

Discussion

Defendant SWLG moves to quash service of the Summons and Complaint in this action pursuant to Code of Civil Procedure section 418.10, which provides: "A defendant,

on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: To quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10, subd. (a)(1), emphasis added.) A defendant has 30 days after the service of the summons to file a responsive pleading. (Code Civ. Proc., § 412.20, subd. (a)(3).)

Substantively,

“[w]hen a defendant challenges the court’s personal jurisdiction on the ground of improper service of process ‘the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.’” (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.) A proof of service containing a declaration from a registered process server invokes a rebuttable presumption affecting the burden of producing evidence, of the facts stated in the return. (Cal. Evid. Code, § 647; see American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390.)

Defendant

SWLG contends that its attorney received the Complaint on May 6, 2026 and May 19, 2026, but that its attorney was never provided the Summons or Third Amended Standing, and none of the documents were properly served. (Motion, Kashani Decl., ¶¶3, 6-7.) The Motion further accurately points out that Plaintiff has not filed a proof of service of the Summons and Complaint demonstrating service of those papers in accordance with statutory law. (Id. at ¶5.) Assuming that Plaintiff intended to rely on its provision of the Complaint as proper service, Defendant SWLG’s challenge to service in the instant Motion, shifts the burden to Plaintiff to demonstrate proper service of the Summons and Complaint. Plaintiff has filed no opposition to carry this burden of proof. Service, if any was claimed to have happened, is quashed.

Finally, the Court addresses

Defendant SWLG’s Special Motion to Strike, which is set for hearing on September 1, 2026. Special motions to strike pursuant to Code of Civil Procedure section 425.16 are not permitted in the Limited Civil Court. (1550 Laurel Owner’s Association, Inc. v. Appellate Division of the Superior Court of Los Angeles County (2018) 28 Cal.App.5th 1146, 1151-1155 [the restriction on motions to strike imposed by Code of Civil Procedure section 92, subdivision (d) also precludes special motions to strike under Code of Civil Procedure

section 425.16].) The Court takes the hearing on the Special Motion to Strike off calendar.

Conclusion

Specially

Appearing Defendant Sunset West Legal Group, PC's Motion to Quash Service of Summons and Complaint is granted.

Defendant

Sunset West Legal Group, PC's Special Motion to Strike, scheduled for 09/01/2026, is placed off calendar.

Order to Show

Cause Re: Failure to File Proof of Service of Summons and Complaint is set for 08/28/2026 at 9:30 am in Department 26 in the Spring Street Courthouse.

Judicial Assistant to give notice.